FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF Richmond

MORTGAGE ASSETS MANAGEMENT, LLC

Plaintiff,

-against-

PUBLIC ADMINISTRATOR OF RICHMOND COUNTY AS ADMINISTRATOR OF THE ESTATE OF CONSTANCE RADU, JOANNE CANNAVO AS HEIR TO THE ESTATE OF CONSTANCE RADU, GEORGE RADU, JR. AS HEIR TO THE ESTATE OF CONSTANCE RADU, STEVEN RADU AS HEIR TO THE ESTATE OF CONSTANCE RADU, THOMAS RADU AS HEIR TO THE ESTATE OF CONSTANCE RADU, MARK RADU AS HEIR TO THE ESTATE OF CONSTANCE RADU, DAVID RADU AS HEIR TO THE ESTATE OF CONSTANCE RADU, PEOPLE OF THE STATE OF NEW YORK, DALE MORTGAGE BANKERS CORP. FKA DALE FUNDING CORPORATION, RICHMOND COUNTY CLERK, UNITED STATES OF AMERICA ACTING THROUGH THE SECRETARY OF HOUSING AND URBAN DEVELOPMENT, NEW YORK CITY ENVIRONMENTAL CONTROL BOARD, NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE, ROBERT DONOFRIO, CARLOS HERRERA

Defendant.

Index No. 135553/2019

MORTGAGED PROPERTY:
23 WINHAM AVENUE
STATEN ISLAND, NY 10306

COUNTY: Richmond
SBL #: Block 4041, Lot 10
Sale Date: February 19,2026

A. To be completed by the Referee

1. Final Judgment Amount per Judgment: $ 369,219.64
2. Adjusted Judgment Amount (Upset Price): $ 463,949.89
   (This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
3. Sale Price: $ 600,000
   (To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
4. Surplus Amount (enter $0.00 if no surplus) $ _____
   ***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees earned in this matter: $ 750.00

Referee Name: Charles C. DeStefano, Esq. Telephone: (718) 390-0580
Address: 1082 Victory Blvd, Staten Island, NY 10301
Email: _____ Signature/Date: 2/19/26

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: Gross Polowy LLC
Address: 1775 Wehrle Drive, Suite 100, Williamsville, NY 14221
Telephone: (716) 204-1700
Email: info@grosspolowy.com
Signature/Date: 2/19/26

C. To Be Completed by Purchaser

Name: Winham Holding 23 LLC
Address: 8515 3rd Ave Brooklyn NY 11209
Telephone: 917-294-9922
Email: Deerarealty@gmail.com
Signature/ Date: 2/19/26
Sais Shawabkeh

Additional Copies of this Form can be found at https://www.nycourts.gov/forms/foreclosure/

Rev. 12/19